

The Motion is denied as to the Requests for Admissions, and Form Interrogatory Nos. 6.3, 7.1 and 7.2, the Court finding that Plaintiffs' responses are code-compliant and sufficient.

The Motion is granted as to Form Interrogatory Nos. 6.4(d) [insufficient as the response does not answer the question posed], 6.7 [insufficient as to subdivisions (b) (the complaints for which the treatment was advised) and (c) (the nature, duration, and estimated cost of the treatment)], 12.6 [insufficient as to (b) [(he date and type of report made)], and 17.1 [evasive and incomplete because it has been combined in a single response without specific reference to the Requests for Admission to which it applies]. Plaintiffs are ordered to provide further responses to the aforementioned Form Interrogatories, Set One, within fifteen days from the date of this hearing.

The Court finds that there has been no showing of ongoing and willful disobedience of a Court's discovery order nor blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. As such, terminating sanctions are not warranted on this record. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. Likewise, as to evidentiary sanctions, the Court similarly finds that such are not warranted here. However, the Court awards additional monetary sanctions in the amount of \$3,283, which are imposed jointly and severally against Plaintiffs and Plaintiffs' counsel. The additional monetary sanctions shall be paid to Defendants' counsel within thirty days. The Court will utilize the form of order submitted by counsel with modifications as noted herein.

#### **11. 25CV00744 FISHER, JEFF V. FISHER, JENNIFER**

##### *EVENT: Amended Motion for Stay of Enforcement Pending Appeal*

As indicated in the Court's prior ruling on June 10, 2026, while the notice period complied with *Code of Civil Procedure* §1005, the proof of service showing service by email on May 8, 2026, service was made on Defendant's prior counsel – Leonard C. Hart Nibbrig. However, on May 6, 2026, Defendant filed a Substitution of Attorney wherein Mr. Nibbrig substituted out, and Defendant Jennifer Fisher, indicated she would be proceeding in pro per. There is still no evidence that the Motion was served on Jennifer Fisher and the Court therefore continues this matter one last time to July 22, 2026 at 9:00 a.m. to allow for proper notice. Plaintiff Jeff Fisher is ordered to serve a copy of the Amended Motion with notice of the new hearing date on Defendant Jennifer Fisher, and file with the Court a proof of service. If the proof of service is not filed with the Court prior to the continued hearing date, the Motion will be denied.

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**12-13. 26CV00748 SANCHEZ, HUMBERTO ET AL V. VUE, A THIT**

*EVENTS: (1) Defendant A Thit Vue's Demurrer to Complaint*

*(2) Defendant A Thit Vue's Motion to Strike Portions of Plaintiffs' Complaint*

**Defendant A Thit Vue's Demurrer to Complaint**

In order to prevail on a cause of action for breach of contract, the Plaintiffs must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186. To do so, Plaintiffs must either attach a copy of the written agreement to the complaint and incorporate it by reference, set out the terms of the contract verbatim within the body of the complaint, or plead the legal effect of the contract by satisfactorily alleging the existence of the contractual obligations that form the basis of the claim and the relevant terms. *Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299; *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189. The Court finds that here, Plaintiffs have failed to prove the existence of a contract and the Demurrer is sustained as to the breach of contract cause of action.

It is "improper" to "recast" a breach of contract cause of action as a tort claim under the economic loss doctrine. *BFGC Architects Planners, Inc. v. Forum/Mackey Constr., Inc.*, (2004) 119 Cal.App.4th 848, 853. "That judicially created doctrine bars recovery in negligence for pure economic losses when such claims would disrupt the parties' private ordering, render contracts less reliable as a means of organizing commercial relationships, and stifle the development of contract law." *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 915 ("[T]he rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties."). The doctrine extends to all tort-based claims "when they arise from—or are not independent of—the parties' underlying contracts." *Id.* at 633; *Aas v. Superior Court* (2000) 4 Cal.4th 627, 643 ("[A] person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations"). Here, the Court finds that Plaintiffs have failed to plead breach of any duty independent or not arising from the alleged breach of contract and the Demurrer is sustained as to the intentional tort cause of action.

Finally, the elements of fraud are (1) a misrepresentation of a material fact (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage." *Collins v. eMachines* (2011) 202 Cal.App.4th 249, 259. "The facts constituting the fraud, including every element of the cause of action, must be alleged 'factually and specifically'" to survive demurrer. *Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 240 [citing *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216-17]. Here, the Court finds that Plaintiffs have failed to plead any of the elements of fraud; they have not stated what representation Defendant made that was false, that Defendant had knowledge of its falsity, that Defendant had intent to defraud, that Plaintiffs justifiably reliance upon the misrepresentation, and that there was damage